

HOUSE No. 4763



MAURA T. HEALEY
GOVERNOR

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KIMBERLEY DRISCOLL
LIEUTENANT GOVERNOR

November 17, 2025

To the Honorable Senate and House of Representatives,

Pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments, I am filing for your consideration the attached legislation entitled “An Act Validating the Results of the Annual Election Held in the Town of Bourne on May 20, 2025.”

I am filing this special legislation at the request of the Town of Bourne’s Select Board.

The legislation ratifies all acts and proceedings taken by the Town at its annual election held on May 20, 2025. At that election, the voters of Bourne overwhelmingly approved a ballot question authorizing \$18,800,000 in bonds to support the construction of a new fire station. Unfortunately, it was later determined that the Town had failed, due to an inadvertent oversight, to include the language of that ballot question on the warrant for the annual election.

Although the ballot question was approved without the language first being included on the warrant for the election, the Town otherwise complied with all statutory requirements. Timely ratification of the results of the election is necessary to permit the Town to proceed with issuing the bonds. I therefore urge your prompt consideration of this bill.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "M. T. Healey", with a stylized flourish at the end.

Maura T. Healey,
Governor

HOUSE No. 4763

Message from Her Excellency the Governor (under the provisions of Section 8 of Article LXXXIX of the Amendments to the Constitution) recommending legislation relative to validating the results of the annual election held in the town of Bourne on May 20, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act validating the results of the annual election held in the town of Bourne on May 20, 2025.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to validate the actions taken by the town of Bourne at its annual town election held on May 20, 2025, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, all acts and
2 proceedings taken by the town of Bourne at the annual town election held on May 20, 2025 and
3 all actions taken pursuant thereto are hereby ratified, validated and confirmed, notwithstanding
4 any failure to include the form of the proposition two and one-half, so-called, debt exclusion
5 question in the posted warrants for said election.

6 SECTION 2. This act shall take effect upon its passage.